

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARK WARREN,

Plaintiff(s),

-Against-

THE CITY OF NEW YORK, THE
NEW YORK CITY POLICE
DEPARTMENT and POLICE
OFFICER WILLIAM BORLAND,
TAX ID# 924966, an employee of
THE NEW YORK CITY POLICE
DEPARTMENT

Defendants(s).

-X Index No.:

SUMMONS

Plaintiff designates Kings County as
place of trial.

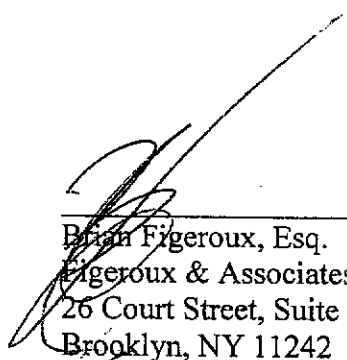
The basis of venue is Plaintiff resides
in Bronx County.

Plaintiff resides at 3961 Carpenter
Avenue, Bronx, NY 10466

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of
your answer, or, if the complaint is not served with this summons, to serve a notice of appearance,
on the plaintiff's attorney within 20 days after service of this summons, exclusive of the day of
service, where service is made by delivery upon you personally within the state, or within 30 days
after completion of service where service is made in any other manner. In case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
complaint.

Dated: May 27, 2015
Brooklyn, NY


Brian Figeroux, Esq.
Figeroux & Associates
26 Court Street, Suite 701
Brooklyn, NY 11242
(718) 834-0190

TO:
The City of New York
Law Department
100 Church Street
New York, NY 10007

15 MAY 28 AM 11:20
COUNTY CLERK
BRONX COUNTY

RECEIVED

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:

MARK WARREN,

Plaintiff(s),

-Against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
WILLIAM BORLAND, Tax ID# 924966 an employee of
THE NEW YORK CITY POLICE DEPARTMENT.

Defendant(s).

-----X
NOW COMES Plaintiff, MARK WARREN, by their attorney, The Law Offices of Figeroux and Associates, as and for a Verified Complaint, respectfully allege upon information and belief as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiff MARK WARREN, was and still is a resident of the County of Bronx, City and State of New York.
2. Plaintiff, MARK WARREN, born in 1961, is a black male, a citizen of the United States, and at all relevant times a resident of the State of New York.
3. At all times hereinafter mentioned, upon information and belief, the Defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation, duly organized and existing under the laws of the State of New York. THE CITY OF NEW YORK has established and maintains THE NEW YORK CITY POLICE DEPARTMENT as an agency of THE CITY OF NEW YORK and is a named Defendant herein.
4. On or about June 6, 2014, and within 90 days after the claim sued upon arose, Plaintiff caused a notice of claim to be served upon THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT by delivering personally a copy of thereof in duplicate to the Comptroller's office, City of New York. The Notice of Claim set forth in duplicate to the Comptroller's Office, City of New York. The notice of claim, the time when, the place where, and the manner in which claim arose and the items of damage or injuries claimed to have been sustained insofar as was then practicable. (A copy of the notice of claim is attached as exhibit A).
5. No 50H hearing has been held in this matter.

6. At least 30 days have elapsed prior to the commencement of this action and since the service of the notice of claim, the 50H Municipal Hearing and no adjustment or payment thereof has been neglected or refused by The City Of New York, and this action was commenced on the claim within one year and 90 days after the happening of the event upon which the claim is based.
7. Upon information and belief on or about the 16th Day of March, 2014 at approximately 8:24am. Plaintiff, MARK WARREN, was a lawful street vendor selling goods in front of 40 East 14th Street, when POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966 of the PBMS ACU Command illegally detained Plaintiff for selling goods without a vendors license in front of the aforementioned location in the Borough of Manhattan, County of New York in the State of New York.

FACTUAL BACKGROUND

8. This is an action for false arrest, false imprisonment, illegal and conversion of property by THE CITY OF NEW YORK and its agents at THE NEW YORK CITY POLICE DEPARTMENT and more in particular POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966 of the PBMS ACU Command that caused Plaintiff loss of freedom, significant financial loss, medical liens as well as emotional distress, mental distress and serious personal injury.
9. This is also an action to redress the pain and suffering and psychological and serious physical injuries sustained by the Plaintiff as a result of the intentional, malicious, careless and negligent acts of the CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966 an employee of The NEW YORK CITY POLICE DEPARTMENT and assigned to the PBMS ACU Command.
10. Upon information and belief on or about the 16th Day of March, 2014, and at all times hereinafter mentioned, Plaintiff, MARK WARREN, was lawfully standing in front of 65 West 130th Street, in the Borough of Manhattan and County New York in the State of New York.
11. Upon information and belief on or about the 16th Day of March, 2014 and at all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966 an employee of The NEW YORK CITY POLICE DEPARTMENT, and the PBMS ACU falls under the umbrella of the Defendant, THE CITY OF NEW YORK.

12. Upon information and belief on or about the 16th Day of March, 2014 and at all times hereinafter mentioned, Defendant(s), The CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were negligent in hiring of staff.
13. Upon information and belief on or about the 16th Day of March, 2014 and at all times hereinafter mentioned, Defendant(s), The CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were negligent in supervision of staff.
14. Upon information and belief on or about the 16th Day of March, 2014 and at all times hereinafter mentioned, Defendant(s), The CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, owned, operated, maintained and controlled, PBMS ACUs which falls under the umbrella of the Defendant(s).
15. That all times hereinafter mentioned, the individually named Defendant POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966, was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties.
16. That all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under the color of State law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
17. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by Defendant, The CITY OF NEW YORK.
18. On or about the 16th Day of March, 2014 the Defendant, POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966, was employed with THE NEW YORK CITY POLICE DEPARTMENT.
19. Upon information and belief on or about the 16th Day of March, 2014 and at all times hereinafter mentioned, Defendant, POLICE OFFICER WILLIAM BORLAND, TAX ID# 924966 an employee of The NEW YORK CITY POLICE DEPARTMENT, illegally stopped and frisked, assaulted, falsely arrested, imprisoned and humiliated Plaintiff in public on the day of occurrence.
20. On or about the 16th Day of March, 2014 the Plaintiff, MARK WARREN, was a lawful licensed street vendor at the time of occurrence.
21. On or about the 16th Day of March, 2014 the Plaintiff, arrest was without probable cause, a warrant or consent.

22. Plaintiff was taken to the Precinct and detained for several hours before being issued a desk appearance ticket.
23. Plaintiff has appeared to several court appearances.
24. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights.
25. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events.
26. They failed to intervene in the obviously illegal actions of their fellow officers against the plaintiff.
27. During the events described above, defendants acted maliciously and with the intent to injure plaintiff.
28. The Defendant(s), so negligently, hired and retention and negligent supervision, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, negligent supervision, resulting in permanent psychological and physical residuals, psychological manifestation and overlay, lessening of self-esteem, betrayal of trust, which will have lifelong effects upon Plaintiff including but not limited to his ability to relate to others and inability to resume a normal and productive life, special damages and enjoyment of life.

**FIRST CAUSE OF ACTION
OF PLAINTIFF, NEGLIGENCE**

29. The accident and the resulting injuries to Plaintiff, MARK WARREN, was caused by reason of the negligence of the Defendant(s).
30. As a result of the negligence of the Defendant(s) in causing the incident, Plaintiff, MARK WARREN, sustained serious and severe injuries, some or all of which are permanent in nature; he was rendered sick, lame, sore and disabled; he has suffered severe distress of body and mind, shock and anguish, great physical pain and emotional upset; this caused him to be hospitalized and received medical care and treatment; he was prevented from attending to his usual way of life; he was caused to suffer great pain and discomfort; he has incurred and will continue to incur costs and expenses for medical and hospital care and treatment, therapy and rehabilitation, all in an effort to be cured of said injuries and the resulting disability; he was required to undergo surgery; all to his great detriment and damage.

31. The action falls within one or more of the exceptions as set forth in CPLR Section 1602.
32. By reason of the foregoing, Plaintiff, MARK WARREN, has been damaged in the sum which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.
33. As a direct and proximate result of the negligence of the defendant, the Plaintiff, MARK WARREN, suffered and continues to suffer serious physical and mental injury, great pain and suffering, loss of enjoyable way of life, has incurred hospital and medical expenses, and has been otherwise damaged in an amount the sum which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION OF PLAINTIFF
NEGLIGENT ENTRUSTMENT**

34. Plaintiff repeats and re-alleges the allegations of Paragraphs "1" through "33" of the Complaint as if fully set forth herein.
35. The failure of the Defendant(s), to exercise reasonable care was a direct and proximate cause of the injuries and loss suffered by the Plaintiff, MARK WARREN, in an amount the sum which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.
36. The above mentioned occurrence and the result thereof were caused by the joint, several and concurrent negligence of the Defendant(s) so negligently, hired and retention and negligent supervision, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, negligent supervision, resulting in permanent psychological residuals, psychological residuals, psychological manifestation and overlay, lessening of self-esteem, betrayal of trust, which will have lifelong effects upon Plaintiff including but not limited to his ability to relate to others and inability to resume a normal and productive life, special damages and enjoyment of life.
37. That no negligence on the part of the Plaintiff, MARK WARREN, contributed to the occurrence alleged herein in any manner whatsoever.

38. That because of the above stated premises, the Plaintiff, MARK WARREN, was caused to have suffered pain, shock and mental disabilities and anguish.
39. That because of the above stated premises these injuries and their effects will be permanent and the Plaintiff, MARK WARREN, was caused to incur expenses for medical care and attention.
40. That as a result of the foregoing, the Plaintiff, MARK WARREN, was damaged in an amount, which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower court's which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendant, jointly and severally, as follows:

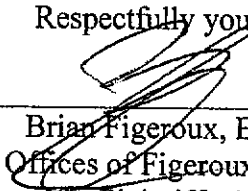
- a. On the First Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- b. Awarding the Plaintiff interests, costs and disbursements in this action; and
- c. Granting such other and further relief as this Court may deem just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: May 27, 2015
Brooklyn, NY

Respectfully yours,



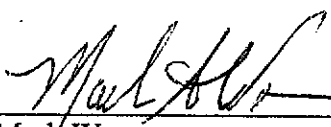
Brian Figeroux, Esq.
The Law Offices of Figeroux & Associates
Attorney for Plaintiff – MARK WARREN
26 Court Street, Suite 701
Brooklyn, New York 11242
Tel.: 718-843-0190;
Fax: 718-222-3153

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

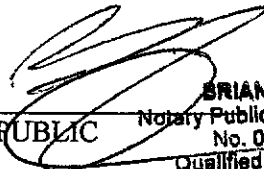
Mark Warren, being duly sworn, deposes and says that the deponent is the Plaintiff in this action and has read this Summons & Verified Complaint and knows its contents to be true to the best of deponent's knowledge, except as to those matters stated to be alleged upon information and belief and as to those matters, deponent believes them to be true.

Dated: May 27, 2015
Brooklyn, New York



Mark Warren

Sworn to before me on this
27th day of MAY, 2015



NOTARY PUBLIC BRIAN FIGEROUX
Notary Public, State of New York
No. 02FI5049815
Qualified in Kings County
Commission Expires Sept. 25, 2017

VERIFICATION

STATE OF NEW YORK }
COUNTY OF KINGS } ss.:

Brian Figeroux Esq., the attorney for the plaintiff, MARK WARREN, in the within action; states:

That I have read the foregoing Summons and Verified Complaint, and know the contents thereof and the same is true to my knowledge, except as to the matters stated therein to be alleged on information and belief, and as to those matters your affirmant believes it to be true.

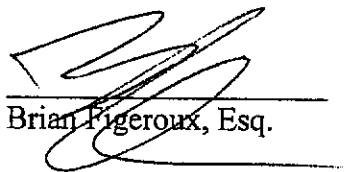
The grounds of my belief as to all matters not states upon my knowledge are as follows:

All material relevant to the occurrence as contained in the file maintained in deponent's office.

I affirm that the foregoing statement is true, under penalties of perjury.

Dated: May 27, 2015
Brooklyn, NY

Yours etc.


Brian Figeroux, Esq.

OFFICE OF THE COMPTROLLER CITY OF NEW YORK

NOTICE OF CLAIM

CLAIMANT INFORMATION

CLAIMANT'S NAME: **MARK WARREN**
TEL. NO.: **(347) 357-0321**
STREET ADDRESS: **3961 CARPENTER AVENUE, APT. 3K**
CITY: **BRONX**; STATE: **NEW YORK**; ZIP: **10466**
SOC. SEC NO.: 095-58-7928

CLAIM INFORMATION

CITY AGENCY INVOLVED:
COMPTROLLER OF THE CITY OF NEW YORK
Municipal Building
One Centre Street
12th Floor
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

NATURE OF CLAIM: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

Nature of claim: The nature of the claim is for severe and permanent personal injuries, sustained by MARK WARREN and all other damages allowed under statute and case law as a result of the negligence, carelessness and recklessness of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants, employees and those acting under their direction, behest, permission and control in the ownership, operation, management, supervision and control of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT in particular the PBMS ACU Command and Police Officer William Borland, Tax ID# 924966.

The time when, the place where and the manner in which the claim arose: The incident arose on or about March 16, 2014 at approximately 8:24 a.m., in front of 40 East 14th Street, in the Borough of Manhattan, the City and State of New York, claimant was arrested for violating AC/20.453, unlicensed General Vendor. Claimant, working in the capacity as a street vendor when he was approached by NYPD Police Officer William Borland, Tax ID# 924966, of the PBMS ACU Command, and directed claimant to produce his ID, which he complied. Police Officer William Borland, Tax ID# 924966 then began to check claimant credentials and stated the license was not valid. Claimant was placed under arrest and held for several hours and currently has the case pending in Criminal Court.

That Claimant MARK WARREN, was caused to be injured by reason of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENTS negligent and grossly inadequate supervision of their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE NEW YORK CITY POLICE DEPARTMENT, the PBMS ACU Command and Police Officer William Borland, Tax ID# 924966, in failing to supervise the Police Officers; or failed to appropriately control its police officers; or failed to try all reasonable interventions in these type of public incidents to prevent such events that arouse on the this date; or failed to carry out or implement an appropriately designed protocol; or negligently or falsely arresting law abiding citizens without cause. That in addition to the negligent and inadequate supervision of their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the PBMS ACU Command and Police Officer William Borland, Tax ID# 924966 were negligent in their hiring, training and supervision of the staff with the undercover Narcotics Division.

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent in their entrustment of the responsibility of operation of said facility. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to provide trained staff and supervisors to oversee the hospital and its patients. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to supervise the staff in said precinct.

That on March 16, 2014, in particular THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT breached their duties to the Claimant and as a result the Claimant sustained serious personal injuries, in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE NEW YORK CITY POLICE DEPARTMENT, Police Officer William Borland, Tax ID# 924966 Command of the with the PBMS ACU Command Division, located in the borough of Manhattan and the county of New York.

Upon information and belief, the poor supervision of THE NEW YORK CITY POLICE DEPARTMENT, contributed to the physical injuries that Claimant, MARK WARREN incurred. The aforesaid accident and the injuries sustained by Claimant were due to the negligence, carelessness and recklessness of the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants and/or employees in the ownership, operation, management, maintenance, inspection and control of the aforesaid hospital and in breaching their duty to properly training, so as not to needlessly endanger and harm the claimant under their care, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT knew or should have known that an incident such as the instant one would or could occur; and in their lack of adequate supervision and failure to provide a safe environment; and the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT was otherwise careless and negligent in causing the serious injuries of Claimant MARK WARREN.

a. False Arrest by falsely imprisoning claimant and accusing him of the crime of AC 20-453 Unlicensed General Vendor, claimant was conscious of the confinement, did not consent to the confinement, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds therefore; and,

b. Violation of Civil Rights under 42 U.S.C. § 1983 in that claimant was deprived of her rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused claimant to be so deprived and other and further violations of claimants rights and privileges secured to his under the Constitutions of the United States and the State of New York.

c. Negligence in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer would have used under similar circumstances, including, but not limited to, improper and negligent of patrol stops for alleged licensed / unlicensed vendors violations and carelessly and recklessly and falsely arresting and seizures of property and other acts which a police officer of ordinary prudence would not have done, all without any negligence on the part of the claimant contributing thereto; and,

d. Negligence of the City of New York and The New York City Police Department, its agents, servants and employees in hiring and retaining a person who was unfit to serve as a policeman and who it knew or should have known had dangerous propensities and lack of proper temperament, in that the New York City Police Department, its agents, servants and employees failed to exercise reasonable precautions in employing Police Officer William Borland, Tax ID# 924966 of the PBMS ACU Command.

e. The items of damage or injuries claimed: severe, serious and, upon information and belief; mental anguish as well as other psychological injuries; shame, humiliation, indignity; damage to reputation and credit; loss of employment and employment opportunities; and that by reason of the aforesaid claimant has been damaged in the sum of ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS.

Claimant, MARK WARREN, is and was an independent person. However, due to the injuries caused by this accident, he has been unable to perform his normal daily activities she normally would be able to.

And now, Claimant, MARK GIBSON, has sustained severe permanent personal injuries, the full extent of which is not presently known, including but not limited to pain and suffering, emotional distress, and future economic losses. Claim is for personal injuries, hospital, physician and other medical expenses, pain and suffering, loss of quality and/or enjoyment of life, loss of present and future performance opportunities, and all other damages to which claimant is entitled to by case law and statute, all to his damage in the sum of ONE HUNDRED THOUSAND DOLLARS (\$100,000.00).

False Arrest and Imprisonment..... \$50,000.00

Violation of Civil Rights.....\$25,000.00

Negligence.....\$25,000.00

The undersigned Claimant therefore presents this claim for adjustment and payment. You are hereby notified that unless this matter is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action of claim.

TOTAL AMOUNT CLAIMED: **\$100,000.00**

IF MORE THAN ONE ITEM IS INCLUDED IN THE TOTAL AMOUNT CLAIMED, SUPPLY BREAKDOWN OF AMOUNT AND SPECIFY ITEMS:

VERIFICATION

State of New York)
) ss.:
County of Kings)

Brian Figeroux, Esq., the attorney for the Plaintiff, **MARK WARREN**, in the within action states:

That I have read the foregoing Notice of Claim and know the contents thereof and the same is true to my knowledge, except as to the matters stated therein to be alleged on information and belief, and as to those matters your affirmant believes it to be true.

The grounds of my belief as to all matters not states upon my knowledge are as follows:

 All material relevant to the occurrence as contained in the file maintained in deponent's office.

I affirm that the foregoing statement is true, under penalties of perjury.

Dated: June 6, 2014
Brooklyn, NY

Yours etc.



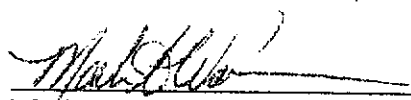
Brian Figeroux, Esq.

VERIFICATION

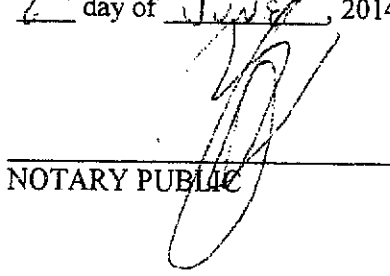
STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

Mark Warren, being duly sworn, deposes and says that the deponent is the Plaintiff in this action and has read this VOTING OF CLAIM and knows its contents to be true to the best of deponent's knowledge, except as to those matters stated to be alleged upon information and belief and as to those matters, deponent believes them to be true.

Dated: JUNE 6, 2014
Brooklyn, New York


Mark Warren

Sworn to before me on this
6th day of JUNE, 2014


NOTARY PUBLIC

BRIAN FIBEROUX
Notary Public, State of New York
No. 02FI5049815
Qualified in Kings County
Commission Expires Sept. 25, 2017

STATE OF NEW YORK

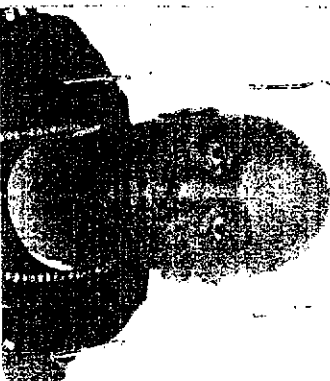
Veterans License to Hawk, Peddle and Vend Merchandise

To All to Whom these Presents Shall Come, Greeting

Know All Men, That JOHN A. WOOTEN ^{Service No. 675 58 7108} a resident of the State of New York, to wit, of The City of New York and County of Bronx, having presented to me a certificate of Honorable Discharge from the Army Service of the United States, dated 4-2-40 2-5-40 whereby Certifying him to be entitled to the benefits of Section 32 of the General Business Law and Acts amendatory thereof authorizing the issuance of licenses to honorably discharged soldiers, sailors and marines for hawking, peddling and selling goods, wares or merchandise, or soliciting trade upon the streets and highways within the City of New York in this State.

The holder of this license shall be subject to the ordinances, by laws and regulations of the City of

New York and to Federal and State statutes and regulations done at the Office of the County Clerk of Bronx County 11 day of March 1941



PERSONAL TO THE LICENSEE
ANY TRANSFER OR ATTEMPT TO
TRANSFER THIS LICENSE IS A
MISDEMEANOR

County Clerk of Bronx County

STATEMENT OF VETERAN

George J. Melaniphy
Name of Goods to be Sold

John A. ...
Name of Company for whom Goods to be Sold

John A. ...
Address of Company

(Continuation of Preceding Page)

Signature of Person to whom License is issued



NYPD PETS PROPERTY and EVIDENCE
TRACKING SYSTEM
Property Clerk Invoice
PD 821-141 (Rev. 11/09)



Invoice No 1000468782

Invoicing Command

MS PEDDLER TF

Invoice Status

UNAPPROVED

Invoice Date

03/16/2014

Property Type

GENERAL PROPERTY

Property Category

PEDDLER PROPERTY

Officers	Rank	Name	Tax No.	Command	
Invoking	POM	BORLAND, WILLIAM	924966	PBMS ACU	CCME, EU No.
Arresting	POM	BORLAND, WILLIAM	924966	PBMS ACU	CCME, FE No.
Investigating	N/A				Police Lab Evid. Ctr. No.
Det Squad Supervisor	N/A				Det Sq. Case No. N/A
CSU/ECT Processing	N/A				CSU/ECT Run No. N/A

Item	Total QTY	Articles	PETS No.	Pkg QTY	Disposition
1	1	JACKET/COAT COLOR: ASSORTED COLORS S/B OF COATS	1297687	1	

REMARKS:

924966 03/16/2014 20:27 : THE ABOVE PROPERTY IS BEING VOUCHERED AS PEDDLER PROPERTY.

Date Of Incident	Penal Code/Description	Crime Classification	Related To	Receipt
03/16/2014	A.C./20.453	MISDEMEANOR	N/A	ACCEPTED

Prisoner's Name	D.O.B	Age	Address	Arrest No./Summons No.	NYSID No.
WARREN, MARK	07/18/1961	52	3961 CARPENTER AVENUE, 3K, BRONX, NY- 10466,347-367-0321	M14623625	05530367L

Complaint No. N/A
Related Complaints N/A
Related Incident No. N/A
Related Invoices N/A

Approvals	Rank	Name	Tax No.	Command	Date	Time
Entered By	POM	BORLAND, WILLIAM	924966	PBMS ACU	03/16/2014	20:24
Invoicing Officer	POM	BORLAND, WILLIAM	924966	PBMS ACU	03/16/2014	20:28

W. Borland

PCD Storage No. --



Invoice No. 1000468782

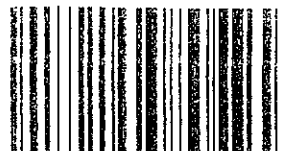
Prisoner / Finder / Owner Copy

Printed: 03/16/2014 20:28

Page No. 1 of 2



NYPD PETS PROPERTY and EVIDENCE
TRACKING SYSTEM
Property Clerk Invoice
PD 521-141/Rev. 11/09

Invoice No. **1000468785**

Item	Total Qty	Amount	PETS No.	Qty. Qty	Disposition
------	-----------	--------	----------	----------	-------------

REMARKS:

924966 03/16/2014 20:55 : THE ABOVE PROPERTY IS BEING VOUCHERED AS SAFEKEEPING.

Date Of Incident	Penal Code/Description	Crime Classification	Related To	Receipt
03/16/2014	A.C./20.453	MISDEMEANOR	N/A	ACCEPTED

Prisoner's Name	D.O.B	Age	Address	Arrest No./Summons No.	NYSID No.
1 WARREN, MARK	07/18/1961	52	3961 CARPENTER AVENUE, 3K, BRONX, NY- 10466,347-357-0321	M14623625	05530367L

Complaint No. N/A

Related Comp. No(s) N/A

Aided/Accident No(s) N/A

Related Invoice(s) N/A

Approvals	Rank	Name	Tax No.	Command	Date	Time
Entered By	POM	BORLAND, WILLIAM	924966	PBMS ACU	03/16/2014	20:31
Invoicing Officer	POM	BORLAND, WILLIAM	924966	PBMS ACU	03/16/2014	20:57

Approved By	SGT	RIEGER, MICHAEL	516034	PBMS ACU	03/16/2014	21:17
-------------	-----	-----------------	--------	----------	------------	-------

PCD Storage No. ---

Invoice No. **1000468785**

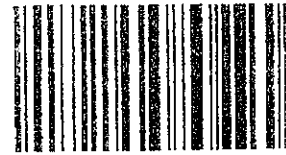
Prisoner / Finder / Owner Copy

Printed: 03/16/2014 21:18

Page No 2 of 3



NYPD PETS PROPERTY AND EVIDENCE
TRACKING SYSTEM
Property Clerk Invoice
PD 521-443/Rev. 11/05



Invoice No. **1000468785**

**NOTICE TO PERSONS FROM WHOM PROPERTY HAS BEEN REMOVED
BY THE POLICE DEPARTMENT**

The person from whose possession property was taken should retain and safeguard the invoice. The New York City Police Department can change the invoice Category without further notice. In order to obtain the return of property, the claimant or a representative authorized by a notarized letter to claim the property will be required to submit, in person or by mail, the invoice and proper identification (one (1) government issued photo identification plus at least one (1) non-photo identification) to the office of the Property Clerk. A claimant demanding the return of property other than Arrest Evidence, DNA Evidence or Forfeiture does not require a District Attorney's Release and may make such demand whether or not criminal proceedings have been instituted and, if instituted, whether or not such proceedings have been terminated.

ARREST EVIDENCE/DNA EVIDENCE/FORFEITURE

The property may be disposed of by the Property Clerk according to law, unless the claimant demands the property no later than 120 days after the termination of criminal proceedings. A claimant demanding the return of arrest evidence/DNA evidence/forfeiture from the Property Clerk should obtain, before making a demand, either a District Attorney's Release or a supervising District Attorney's statement refusing to grant a release. Presentation of either or both of these documents to the Property Clerk is **NOT** required for making a timely demand. If a demand for the property is made without a District Attorney's Release or a supervising District Attorney's statement, the claimant shall have 270 days from the date of demand to obtain a District Attorney's Release or a Supervising District Attorney's statement refusing to grant a release. If a release or a statement refusing to grant a release is not provided to the Property clerk within 270 days of the date of demand, the property may be disposed of according to law. If a claimant timely provides the Property clerk with a District Attorney's statement refusing to grant a release, the claimant must, when the District Attorney no longer needs the property, obtain and submit a District Attorney's Release to the Police Department. Forfeiture property may additionally require a Civil Enforcement Release prior to release.

INVESTIGATORY/DNA INVESTIGATORY

Investigatory property is disposed of after one (1) year, unless otherwise requested by the investigating officer.

DECEDENT'S PROPERTY

LETTERS TESTAMENTARY or **LETTERS OF ADMINISTRATION** obtained from the Surrogate Court of the decedent's county of residence are required for release.

FOUND PROPERTY

Pursuant to law, found property will be held for the following periods of time (unless sooner delivered to owner):

- a. Property having a value of less than \$100 --- 3 months
- b. Property having a value of \$100 but less than \$500 --- 6 months
- c. Property having a value of \$500 but less than \$5000 --- 1 year
- d. Property having a value of \$5000 or more --- 3 years

SAFEKEEPING

Property held for Safekeeping must be claimed within 120 days from the date it was invoiced. After 120 days, property will be disposed of as per applicable NYC Law. All firearms, rifles, and shotguns, invoiced for safekeeping must be reclaimed by the owner within one (1) year of the date of invoice. After the expiration of one (1) year, the firearm, rifle, or shotgun will be disposed of by the Property Clerk pursuant to law, without further notice.

PEDDLER PROPERTY

Peddler property that is deemed trademark counterfeit, and classified found/abandoned property will be destroyed on intake. All other Peddler Property is held for a period of 90 days. A claimant that demands the return of his/her peddler property must obtain a letter from the NYPD Law department stating the property can be released and:

- a. A claimant that was issued an Environmental Control Board summons must obtain a decision and order sheet from ECB.
- b. A claimant that was issued a Criminal Court summons or was arrested must obtain a court disposition sheet in order to obtain his/her peddler property.

Please bring this receipt with you when you are notified to appear to claim the property. For information concerning property which you delivered to this Department, please call the Property Clerk's office in the borough in which the property was turned in.
The Property Clerk offices are located at:

MANHATTAN
BRONX
BROOKLYN
QUEENS
STATEN ISLAND
PEARSON PLACE WAREHOUSE

1 Police Plaza
215 East 181 St
301 Gold Street
47-08 Austell Place
1 Edgewater Plaza
47-15 Pearson Plaza

646-610-5906
718-590-2606
718-675-8576
718-433-2676
718-876-8413
718-361-1027

*Checks will only be issued between the hours of 8:30 AM and 2:30 PM

If vehicle is involved, contact the following:

SPRINGFIELD GARDENS AUTO POUND

174-20 North Boundary Road, Queens, NY

718-533-6681

For more information visit the Property Clerk Division's website:

http://www.nyc.gov/html/nypd/html/property_clerk/property_clerk.shtml



Invoice No. **1000468785**

Prisoner / Finder / Owner Copy

Printed: 03/18/2014 2:11 PM

PCE Storage No. --

Page No. 3 of 3

Mark Warner

7013 2250 0001 5558 9122

U.S. Postal Service	
CERTIFIED MAIL RECEIPT	
(Domestic Mail Only; No Insurance Coverage Provided)	
For delivery information visit our website at www.usps.com	
OFFICIAL USE	
Postage	\$ 0.91
Certified Fee	\$3.30
Return Receipt Fee (Enforcement Required)	\$2.70
Restricted Delivery Fee (Enforcement Required)	\$0.00
Total Postage & Fees	\$ 6.91

NEW YORK NY 10007

STATION 934
JUN - 6 2016
USPS
Postmark here

Sent To
OFFICE OF THE COMPTROLLER, CITY OF NY
Street, Apt. No.,
or PO Box No. ONE CENTRE STREET - 12TH FL
City, State, ZIP+4 New York, NY 10007

PS Form 3800, August 2006 See Reverse for Instructions

Warren Mark

SENDER: COMPLETE THIS SECTION		COMPLETE THIS SECTION ON DELIVERY	
■ Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired. ■ Print your name and address on the reverse so that we can return the card to you. ■ Attach this card to the back of the mailpiece, or on the front if space permits.		A. Signature X <i>B. Cloud</i> ☐ Agent ☐ Addressee	
1. Article Addressed to: COMPTROLLER OF THE CITY OF NEW YORK ONE CENTRE ST. - 12TH FL. NEW YORK, NY 10007		B. Received by (Printed Name) <i>B. Cloud</i>	C. Date of Delivery <i>6-10-14</i>
		D. Is delivery address different from item 1? ☐ Yes ☐ No If YES, enter delivery address below:	
		3. Service Type ☒ Certified Mail® ☐ Priority Mail Express™ ☐ Registered ☒ Return Receipt for Merchandise ☐ Insured Mail ☐ Collect on Delivery	
2. A PS F		4. Restricted Delivery? (Extra Fee) ☐ Yes	

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:

MARK WARREN,

Plaintiff(s),

-Against-

**SUMMONS AND
VERIFIED COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT AND POLICE OFFICER
JOHN GUERRA an employee of THE NEW YORK
CITY POLICE DEPARTMEN

Defendant(s).

-----X

SUMMONS AND VERIFIED COMPLAINT

Figeroux & Associates
Attorneys for Plaintiff
MARK WARREN
26 Court Street, Suite 701
Brooklyn, New York 11242
Tel: 718-834-0190

TO:

The City of New York
Law Department
100 Church Street
New York, NY 10007